

PROPOSED
SENATE AMENDMENTS TO H.B. 2697
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 <<Section 1. ~~Section 32-1979, Arizona Revised Statutes, is amended~~
3 ~~to read:~~

4 ~~32-1979. Pharmacists, dispensing opioid antagonists;~~
5 ~~immunity; definition~~

6 ~~A. A pharmacist may dispense, pursuant to a standing order issued~~
7 ~~pursuant to section 36-2266, naloxone hydrochloride or any other opioid~~
8 ~~antagonist that is approved by the United States food and drug~~
9 ~~administration for a person who is at risk of experiencing an~~
10 ~~opioid-related overdose or to a family member or community member who is~~
11 ~~in a position to assist that person.~~

12 ~~B. A pharmacist who dispenses naloxone hydrochloride or any other~~
13 ~~opioid antagonist pursuant to subsection A of this section shall instruct~~
14 ~~the individual to whom the opioid antagonist is dispensed to summon~~
15 ~~emergency services as soon as practicable after administering the opioid~~
16 ~~antagonist.~~

17 ~~C. This section does not affect the authority of a pharmacist to~~
18 ~~fill or refill a prescription for naloxone hydrochloride or any other~~
19 ~~opioid antagonist that is approved by the United States food and drug~~
20 ~~administration.~~

21 ~~D. A PHARMACIST MAY PROVIDE, WITHOUT COMPENSATION, A KIT THAT~~
22 ~~CONTAINS NALOXONE HYDROCHLORIDE OR ANY OTHER OPIOID ANTAGONIST THAT IS~~
23 ~~APPROVED BY THE UNITED STATES FOOD AND DRUG ADMINISTRATION TO TREAT A DRUG~~
24 ~~OVERDOSE, INCLUDING ANY EXPIRED OPIOID ANTAGONIST, TO A PERSON WHO IS AT~~
25 ~~RISK OF EXPERIENCING OR WHO IS EXPERIENCING AN OPIOID-RELATED OVERDOSE.~~

26 ~~D. E. FOR THE PURPOSES OF SECTION 36-2267, SUBSECTION B TO ADDRESS~~
27 ~~OPIOID OVERDOSE EMERGENCIES, a pharmacist who dispenses an opioid~~
28 ~~antagonist OR PROVIDES ANY EXPIRED OPIOID ANTAGONIST pursuant to this~~

~~1 section is immune from professional liability and criminal prosecution for
2 any decision made, act or omission or injury that results from that act if
3 the pharmacist acts with reasonable care and in good faith, except in
4 cases of wanton or wilful neglect.~~

~~5 F. FOR THE PURPOSES OF THIS SECTION, "EXPIRED OPIOID ANTAGONIST"
6 MEANS AN OPIOID ANTAGONIST THAT IS NOT MORE THAN THREE YEARS PAST THE
7 OPIOID ANTAGONIST'S EXPIRATION DATE.>>~~

8 Section 1. Section 36-192, Arizona Revised Statutes, is amended to
9 read:

10 36-192. County health departments; naloxone kits; definition

11 A. The department and the Arizona health care cost containment
12 system shall continue to distribute naloxone kits as necessary. In
13 addition, a county health department may provide to a person who is at
14 risk of experiencing or who is experiencing an opioid-related overdose a
15 kit that contains naloxone hydrochloride or any other opioid antagonist,
16 INCLUDING ANY EXPIRED OPIOID ANTAGONIST, that is approved by the United
17 States food and drug administration for the treatment of a drug overdose.

18 B. FOR THE PURPOSES OF THIS SECTION, "EXPIRED OPIOID ANTAGONIST"
19 MEANS AN OPIOID ANTAGONIST THAT IS NOT MORE THAN THREE YEARS PAST THE
20 OPIOID ANTAGONIST'S EXPIRATION DATE.

21 Sec. 2. Section 36-798.51, Arizona Revised Statutes, is amended to
22 read:

23 36-798.51. Overdose and disease prevention programs;
24 requirements; standards; definition

25 A. A city, town, county or nongovernmental organization, including
26 a local health department or an organization that promotes scientifically
27 proven ways of mitigating health risks associated with drug use and other
28 high-risk behaviors, or any combination of these entities, may establish
29 and operate an overdose and disease prevention program. A program
30 established pursuant to this section shall have all of the following
31 objectives:

32 1. To reduce the spread of viral hepatitis, HIV and other
33 bloodborne diseases in this state.

34 2. To reduce needle-stick injuries to law enforcement officers and
35 other emergency personnel.

36 3. To encourage individuals who inject drugs to enroll in
37 evidence-based treatment.

38 4. To increase proper disposal of used syringes.

39 5. To reduce the occurrence of skin and soft tissue wounds and
40 infections related to injection drug use.

41 B. A program established pursuant to this section shall offer all
42 of the following:

43 1. Disposal of used needles and hypodermic syringes.

1 2. Needles, hypodermic syringes and other injection supply items at
2 no cost and in quantities sufficient to ensure that needles, hypodermic
3 syringes and other injection supply items are not shared or reused.

4 3. Educational materials on all of the following:

5 (a) Overdose prevention.

6 (b) Peer support services.

7 (c) The prevention of HIV, viral hepatitis transmission and the
8 incidence of skin and soft tissue wounds and infections.

9 (d) Treatment for mental illness, including treatment referrals.

10 (e) Treatment for substance use disorder, including referrals for
11 substance use disorder treatment.

12 4. Access to kits that contain naloxone hydrochloride or any other
13 opioid antagonist, **INCLUDING ANY EXPIRED OPIOID ANTAGONIST**, that is
14 approved by the United States food and drug administration to treat a drug
15 overdose, or referrals to programs that provide access to naloxone
16 hydrochloride or any other opioid antagonist, **INCLUDING ANY EXPIRED OPIOID**
17 **ANTAGONIST**, that is approved by the United States food and drug
18 administration to treat a drug overdose.

19 5. For each individual who requests services, personal
20 consultations from a program employee or volunteer concerning mental
21 health or substance use disorder treatment or referrals for evidence-based
22 substance use disorder treatment, as appropriate.

23 C. A program established pursuant to this section shall develop
24 standards for distributing and disposing of needles and hypodermic
25 syringes based on scientific evidence and best practices. The number of
26 needles and hypodermic syringes disposed of through a program shall be at
27 least equivalent to the number of needles and hypodermic syringes
28 distributed through the program.

29 **D. FOR THE PURPOSES OF THIS SECTION, "EXPIRED OPIOID ANTAGONIST"**
30 **MEANS AN OPIOID ANTAGONIST THAT IS NOT MORE THAN THREE YEARS PAST THE**
31 **OPIOID ANTAGONIST'S EXPIRATION DATE.**

32 Sec. 3. Section 36-2266, Arizona Revised Statutes, is amended to
33 read:

34 **36-2266. Prescribing and dispensing; immunity; definitions**

35 A. A physician who is licensed pursuant to title 32, chapter 13 or
36 17, a nurse practitioner licensed pursuant to title 32, chapter 15 and
37 authorized by law to prescribe drugs or any other health professional who
38 has prescribing authority and who is acting within the health
39 professional's scope of practice may prescribe or dispense, directly or by
40 a standing order, naloxone hydrochloride or any other opioid antagonist
41 that is approved by the United States food and drug administration for use
42 according to the protocol specified by the physician, nurse practitioner
43 or other health professional to a person who is at risk of experiencing an
44 opioid-related overdose, to a family member of that person, to a community
45 organization that provides services to persons who are at risk of an

1 opioid-related overdose or to any other person who is in a position to
2 assist a person who is at risk of experiencing an opioid-related overdose.

3 B. A physician, nurse practitioner or other health professional who
4 prescribes or dispenses naloxone hydrochloride or any other opioid
5 antagonist pursuant to subsection A of this section shall instruct the
6 individual to whom the opioid antagonist is dispensed to summon emergency
7 services as soon as practicable, either before or after administering the
8 opioid antagonist.

9 C. A PHYSICIAN, A NURSE PRACTITIONER OR ANY OTHER HEALTH
10 PROFESSIONAL WHO IS LICENSED IN THIS STATE MAY PROVIDE, WITHOUT
11 COMPENSATION, A KIT THAT CONTAINS NALOXONE HYDROCHLORIDE OR ANY OTHER
12 OPIOID ANTAGONIST THAT IS APPROVED BY THE UNITED STATES FOOD AND DRUG
13 ADMINISTRATION TO TREAT A DRUG OVERDOSE, INCLUDING ANY EXPIRED OPIOID
14 ANTAGONIST, TO A PERSON WHO IS AT RISK OF EXPERIENCING OR WHO IS
15 EXPERIENCING AN OPIOID-RELATED OVERDOSE.

16 ~~C.~~ D. Except in cases of gross negligence, wilful misconduct or
17 intentional wrongdoing, a physician, nurse practitioner or other health
18 professional who in good faith prescribes or dispenses an opioid
19 antagonist OR PROVIDES AN EXPIRED OPIOID ANTAGONIST FOR THE PURPOSES OF
20 SECTION 36-2267, SUBSECTION B TO ADDRESS OPIOID OVERDOSE EMERGENCIES
21 pursuant to subsection A of this section is immune from professional
22 liability and criminal prosecution for any decision made, act or omission
23 or injury that results from that act if the physician, nurse practitioner
24 or other health professional acts with reasonable care and in good faith.

25 ~~D.~~ E. For the purposes of this section: ~~;~~

26 1. "EXPIRED OPIOID ANTAGONIST" MEANS AN OPIOID ANTAGONIST THAT IS
27 NOT MORE THAN THREE YEARS PAST THE OPIOID ANTAGONIST'S EXPIRATION DATE.

28 2. "Person" includes an employee of a school district or charter
29 school who is acting in the person's official capacity.

30 Sec. 4. Section 36-2267, Arizona Revised Statutes, is amended to
31 read:

32 36-2267. Administration of opioid antagonist; exemption from
33 civil liability; definitions

34 A. A person may administer an opioid antagonist, INCLUDING ANY
35 EXPIRED OPIOID ANTAGONIST, ~~that is prescribed or dispensed pursuant to~~
36 ~~section 32-1979 or 36-2266 in accordance with the protocol specified by~~
37 ~~the physician, nurse practitioner, pharmacist or other health professional~~
38 ~~or that is received from a county health department pursuant to section~~
39 ~~36-192~~ to a person who is experiencing an opioid-related overdose.

40 B. A person who in good faith and without compensation administers
41 an opioid antagonist, INCLUDING ANY EXPIRED OPIOID ANTAGONIST, to a person
42 who is experiencing an opioid-related overdose is not liable for any civil
43 or other damages as the result of any act or omission by the person
44 rendering the care or as the result of any act or failure to act to
45 arrange for further medical treatment or care for the person experiencing

1 the overdose, unless the person while rendering the care acts with gross
2 negligence, wilful misconduct or intentional wrongdoing.

3 C. For the purposes of this section: ~~—~~

4 1. "EXPIRED OPIOID ANTAGONIST" MEANS AN OPIOID ANTAGONIST THAT IS
5 NOT MORE THAN THREE YEARS PAST THE OPIOID ANTAGONIST'S EXPIRATION DATE.

6 2. "Person" includes an employee of a school district or charter
7 school who is acting in the person's official capacity.

8 Enroll and engross to conform

9 Amend title to conform

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